

SENATE BILL 2208

By Johnson

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 8 and Title 49, relative to the "DEI
Compliance Certification Act."

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "DEI Compliance Certification Act."

SECTION 2. Tennessee Code Annotated, Title 4, Chapter 1, is amended by adding the following as a new part:

4-1-601. Purpose.

(a) The purpose of this part is to require each state department and agency to demonstrate its compliance with §§ 4-1-427 and 8-30-109, and with any other state law or policy prohibiting the adoption, implementation, or enforcement of DEI.

(b) If a state department or agency fails to demonstrate its compliance with §§ 4-1-427 and 8-30-109, and with any other state law or policy prohibiting the adoption, implementation, or enforcement of DEI, then the state department or agency risks termination, reorganization, and a loss of funding, and is subject to any other penalty, remedy, or enforcement measure available to the governor and the general assembly.

4-1-602. Legislative findings.

The general assembly finds that:

(1) DEI is destructive to the shared concepts of fairness and freedom for the citizens of this state and corrodes this state's institutions by making such institutions less efficient and effective;

(2) This state has prohibitions against DEI, which are particularly important for state departments and agencies to implement with fidelity; and

(3) In order to prevent harmful DEI in our state departments and agencies, proactive compliance measures and penalties are necessary.

4-1-603. Part definitions.

As used in this part:

(1) "Diversity, equity, and inclusion" or "DEI" means a policy, procedure, practice, or preference based on one (1) or more of the following concepts:

(A) That one (1) race or sex is inherently superior to another;

(B) The United States is fundamentally racist or sexist;

(C) An individual, by virtue of their race or sex, is inherently racist, sexist, or oppressive, whether consciously or unconsciously;

(D) An individual must be discriminated against or receive adverse treatment, in whole or in part, based on their race or sex;

(E) Members of one (1) race or sex should not interact with members of another race or sex without consideration of their race or sex;

(F) An individual's character is determined by their race or sex;

(G) An individual, by virtue of their race or sex, bears responsibility for actions committed in the past by other members of the same race or sex;

(H) An individual should feel discomfort, guilt, anguish, or another form of psychological distress because of their race or sex;

(I) A meritocracy is inherently racist or sexist, or designed by a particular race or sex to oppress members of another race or sex;

(J) Traits, such as having a strong work ethic, are racist or sexist;

(K) An individual must believe and speak in a manner consistent with the concept that a person can change their sex or gender; and

(L) Division between, or resentment of, a race, sex, religion, creed, nonviolent political affiliation, social class, or other class of people should be promoted; and

(2) "State department or agency" or "state department and agency" means any board, commission, committee, and department of this state, and includes any and all other units of state government.

4-1-604. Reporting requirements.

Each state department and agency shall, by January 31 of each year:

(1) Submit a report to the governor and general assembly detailing the steps that the state department or agency has taken to remove DEI from the workplace, identifying any areas of institutional concern, and summarizing any complaints received by the state department or agency related to violations of any state law that prohibits DEI; and

(2) Certify, through its commissioner, director, executive director, or other chief administrator, to the governor and general assembly in a sworn statement made under penalty of perjury that the state department or agency is in compliance with §§ 4-1-427 and 8-30-109, this part, and with any other state law or policy that prohibits the adoption, implementation, or enforcement of DEI, and that all statements made pursuant to this section are true and accurate.

4-1-605. Enforcement.

(a) The attorney general and reporter is authorized to investigate any allegation that a state department or agency is acting in violation of § 4-1-427, § 8-30-109, or another state law prohibiting the adoption, implementation, or enforcement of DEI.

(b) The attorney general and reporter shall submit an annual report to the governor and the general assembly detailing for the fiscal year immediately preceding the date on which the attorney general and reporter submits the report, each allegation made against a state department or agency on grounds that the state department or agency is or was acting in violation of § 4-1-427, § 8-30-109, or another state law prohibiting the adoption, implementation, or enforcement of DEI. The report must include the outcome of each investigation conducted by the attorney general and reporter for the respective fiscal year. Each report required pursuant to this section is due to the governor and the general assembly by October 31 of each year.

SECTION 3. Tennessee Code Annotated, Title 49, Chapter 7, is amended by adding the following as a new part:

49-7-2501. Purpose.

(a) The purpose of this part is to require each public institution of higher education to demonstrate its compliance with §§ 49-7-192 and 49-7-193, and with any other state law or policy prohibiting the adoption, implementation, or enforcement of DEI.

(b) If a public institution of higher education fails to demonstrate its compliance with §§ 49-7-192 and 49-7-193, and with any other state law or policy prohibiting the adoption, implementation, or enforcement of DEI, then the institution risks termination, reorganization, and a loss of funding, and is subject to any other penalty, remedy, or enforcement measure available to the governor and the general assembly.

49-7-2502. Legislative findings.

The general assembly finds that:

(1) DEI is destructive to the shared concepts of fairness and freedom for the citizens of this state and corrodes this state's institutions by making such institutions less efficient and effective;

(2) This state has prohibitions against DEI, which are particularly important for public institutions of higher education to implement with fidelity; and

(3) In order to prevent harmful DEI in our public institutions of higher education, proactive compliance measures and penalties are necessary.

49-7-2503. Part definitions.

As used in this part:

(1) "Diversity, equity, and inclusion" or "DEI" means a policy, procedure, practice, or preference based on one (1) or more of the following concepts:

(A) That one (1) race or sex is inherently superior to another;

(B) The United States is fundamentally racist or sexist;

(C) An individual, by virtue of their race or sex, is inherently racist, sexist, or oppressive, whether consciously or unconsciously;

(D) An individual must be discriminated against or receive adverse treatment, in whole or in part, based on their race or sex;

(E) Members of one (1) race or sex should not interact with members of another race or sex without consideration of their race or sex;

(F) An individual's character is determined by their race or sex;

(G) An individual, by virtue of their race or sex, bears responsibility for actions committed in the past by other members of the same race or sex;

(H) An individual should feel discomfort, guilt, anguish, or another form of psychological distress because of their race or sex;

(I) A meritocracy is inherently racist or sexist, or designed by a particular race or sex to oppress members of another race or sex;

(J) Traits, such as having a strong work ethic, are racist or sexist;

(K) An individual must believe and speak in a manner consistent with the concept that a person can change their sex or gender; and

(L) Division between, or resentment of, a race, sex, religion, creed, nonviolent political affiliation, social class, or other class of people should be promoted; and

(2) "Public institution of higher education" or "institution" means an institution governed by the board of regents, an institution governed by a state university board, and an institution governed by the board of trustees of the University of Tennessee system, and includes the respective governing board.

49-7-2504. Reporting requirements.

Each public institution of higher education shall, by January 31 of each year:

(1) Submit a report to the governor and general assembly detailing the steps that the institution has taken to remove DEI from the workplace, identifying any areas of institutional concern, and summarizing any complaints received by the institution related to violations of any state law that prohibits DEI; and

(2) Certify, through its president or chief executive officer, to the governor and general assembly in a sworn statement made under penalty of perjury that the institution is in compliance with §§ 49-7-192 and 49-7-193, and with any other state law or policy prohibiting the adoption, implementation, or enforcement of DEI, and that all statements made pursuant to this section are true and accurate.

49-7-2505. Enforcement.

(a) The attorney general and reporter is authorized to investigate any allegation that an institution is acting in violation of § 49-7-192, § 49-7-193, or another state law prohibiting the adoption, implementation, or enforcement of DEI.

(b) The attorney general and reporter shall submit an annual report to the governor and the general assembly detailing for the fiscal year immediately preceding the date on which the attorney general and reporter submits the report, each allegation made against an institution on grounds that the institution is or was acting in violation of § 49-7-192, § 49-7-193, or another state law prohibiting the adoption, implementation, or enforcement of DEI. The report must include the outcome of each investigation conducted by the attorney general and reporter for the respective fiscal year. Each report required pursuant to this section is due to the governor and the general assembly by October 31 of each year.

SECTION 4. If any provision of this act or the application of any provision of this act to any person or circumstance is held invalid, the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 5. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 6. This act takes effect July 1, 2026, the public welfare requiring it.